

SENATE No. 637

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to Title 5 of the State Environmental Code.

PETITION OF:

NAME:

Mark C. Montigny

DISTRICT/ADDRESS:

Second Bristol and Plymouth

SENATE No. 637

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 637) of Mark C. Montigny for legislation relative to Title 5 of the State Environmental Code. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 532 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to Title 5 of the State Environmental Code.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Pursuant to 310 CMR 15.000, the department shall not require a dwelling
2 used as a primary residence to install or upgrade to Best Available Nitrogen Reducing
3 Technology, unless said installation or upgrade is required by an enforceable Watershed Permit
4 issued pursuant to 314 CMR 21.00. No Watershed Permit shall be required or enforced unless
5 the department or the general court, by appropriation, provides for any cost obligations imposed
6 upon the Local Government Unit, including any costs incurred to a primary residence.

7 SECTION 2. This act shall take effect upon its passage.